

Court No. - 72

Case :- APPLICATION U/S 528 BNSS No. - 13290 of 2025

Applicant :- Raj Kumar Ojha

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- P.K. Upadhyay

Counsel for Opposite Party :- G.A.

Hon'ble Sanjay Kumar Pachori,J.

Learned counsel for the applicant submits that due to inadvertence the prayer has been wrongly mentioned.

Learned counsel for the applicant is permitted to correct the same during the course of hearing.

Heard Shri P.K. Upadhyay, learned counsel for the applicant and Sri B.N. Upadhyay, learned A.G.A. for the State.

The present application under Section 528 of Bharatiya Nagarik Suraksha Sanhita, has been filed to quash the entire proceedings of Criminal Case No. 80 of 2024 arising out of Case Crime No. 230 of 2022, under Sections 353, 504, 506 of I.P.C., Police Station-George Town, District Prayagraj, as well as cognizance/summoning order dated 17.01.2024 pending in the court of Additional Chief Judicial Magistrate, Court No. 7, Allahabad.

Learned counsel for the applicant submits that the first information report dated 22.06.2022 has been lodged on the basis of false and frivolous allegations with ulterior motive and only to harass the present applicant. It is further submitted that in pursuance of the order dated 27.05.2022 passed by a Division Bench of this Court in Writ- C No. 11135 of 2022, the first informant has been directed to decide the objections under Para 6.5 of the U.P. Electricity Supply Code, 2005 within 8 weeks but instead of deciding the objections, the impugned F.I.R. has been lodged.

It is further submitted that the applicant has filed Contempt Application (Civil) No. 3588 of 2022, in which the first informant has not said a single word in his objection about the alleged incident. There is no pre-summoning evidence with regard to offence as alleged against the applicant.

Prima facie, matter requires consideration.

Notice on behalf of opposite party no. 1 has been accepted by learned A.G.A.

Issue notice to opposite party no. 2 returnable at an early date.

Learned A.G.A. as well as opposite party no. 2 may file their counter affidavits within two weeks. Rejoinder affidavit may be filed within one week thereafter.

List after eight weeks.

Until further orders of this Court, further proceedings of the aforesaid case, shall remain stayed against the applicant.

Order Date :- 19.5.2025

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